

This taking of evidence was performed during the oral proceedings before the board. See T 144/17 for a visual inspection by the opposition division.

3.2.12 When to submit supporting evidence – specific examples

In T 7/07 the respondent (patent proprietor) disputed the admissibility of the appeal due to the question of the identification of the appellant (opponent) (R. 64(a) EPC 1973 / R. 99(1)(a) EPC). The board observed that the universal successor to the opponent automatically acquires party status in proceedings pending before the EPO on the date on which a merger becomes effective, irrespective of when supporting evidence is filed (see T 6/05).

In J 14/19, the board held that evidence that the requirements for a stay of the proceedings as per R. 14(1) EPC had been met needed to be provided while the proceedings for grant were still pending and thus before the mention of the grant was published in the European Patent Bulletin. Any evidence not submitted by then should not be taken into account by the EPO.

3.2.13 Late offer of a replacement for a deceased witness – admitted

In T 1760/10, a replacement witness, Mr S, was offered due to the death of the first witness proposed. During oral proceedings the board decided to hear Mr S as a witness. The respondent (patentee) objected to the hearing of the witness: the nomination of Mr S as a witness was **late** (March 2013 / notice of appeal 2010 / oral proceedings October 2013) and the appellant (opponent) had not indicated the matters on which he should testify. In the board's view, nothing should have surprised the respondent in this regard.

3.2.14 Hearing the party without their attorney

A party may be heard in the absence of his patent attorney if the latter has been duly informed (cf. T 451/89 and T 883/90, ex parte cases – taking of evidence ordered at oral proceedings).

3.3. Right to be heard

3.3.1 General

In T 1110/03 (OJ 2005, 302) the board observed that Art. 117(1) EPC and Art. 113(1) EPC embody a basic procedural right generally recognised in the EPC contracting states, viz. the right to give evidence in appropriate form (specifically by producing documents under Art. 117(1)(c) EPC) and the right to **have that evidence heard** (T 1110/03) to the extent that it has not been expressly excluded from the debate (T 2294/12).

EPO departments must ascertain the relevance of evidence submitted to them before deciding to admit or reject it. Only in exceptional circumstances need they not do so (T 142/97, Catchword). An opposition division's refusal to consider evidence filed **in due**

time infringes a party's fundamental right to free choice of evidence and the right to be heard (T.142/97, OJ 2000, 358). See also T.1231/11 (citing T.267/06, T.448/07, T.25/08), according to which the offered witness has to be summoned should any doubt remain.

Furthermore, pursuant to Art.113(1)EPC each party must be allowed to comment on any evidence legitimately submitted in the proceedings. Allowing one party, even the party that originally submitted the evidence, to require unilaterally and arbitrarily that the evidence be withdrawn or **excluded** from consideration would infringe this right (T.95/07; cf. the case in T.760/89, OJ 1994, 797, concerning a return of documents filed as evidence).

As a rule, if assertions made in an unsworn witness declaration ("eidesstattliche Versicherung") remain **contested**, a request from a party to hear the witness must be **granted** before these assertions are made the basis of a decision against the contesting party. In T.474/04 (OJ 2006, 129), the opposition division had revoked the patent in suit because the invention did not involve an inventive step over the prior use evidenced in the declaration in lieu of an oath. Since fundamental assertions made in the declaration had been contested, the author was offered as a witness. Although the appellant (patentee) had consistently demanded that the author be heard, the opposition division decided not to summon him as a witness, even though he was available. In the board's view, the appellant had effectively been prevented from making use of a **decisive piece of evidence** (decision extensively cited in T.190/05 and more recently in T.2659/17).

Failure to consider evidence will normally constitute a substantial procedural violation in that it deprives a party of basic rights enshrined in Art.117(1) and Art.113(1)EPC (T.1098/07). In T.135/96 (point 3 of the Reasons), ignoring documents (and arguments) relevant to inventive step was found to violate the party's right to be heard. The board in T.1110/03 (OJ 2005, 302) made a similar finding where indirect evidence substantiating an allegation of fact relevant to novelty was disregarded. In T.1536/08 the opposition division had infringed the opponent's right to be heard by completely ignoring the unambiguous offer in its notice of opposition to provide the original printed versions of crucial prior-art documents (see also chapter III.B.2.4.5 "Failure to consider evidence").

3.3.2 Parties' right to comment

In T.838/92 the board observed that in applying the principle of free evaluation of evidence, the opposition division or the board of appeal must exercise caution when evaluating the testimony of a witness whose impartiality is in doubt, with the parties of course being given an opportunity to comment on that testimony (Art.113(1)EPC 1973). The board was not minded to sustain the appellant's objection to consideration of court bailiffs' reports on the basis that they had been established unilaterally. Such documents recording findings of fact were merely pieces of information which could be added to the file as evidence once they had been **submitted to the parties for comment**.

In T.909/03, where one of the appellants had objected to the manner in which a witness had been heard, the board held that it was not necessary for a party to be given a copy of the minuted testimony before questioning a witness. During the oral proceedings the party had been given sufficient opportunity to comment on the testimony of the witness.

3.3.3 Parties' responsibilities

In R 6/12 (case T 928/10) the Enlarged Board considered unfounded the assertion made by the petitioner (opponent) that it had been surprised by the board's failure to order that expert witnesses be heard. The petitioner could and should have taken an **active part in the proceedings** and, in particular, it was up to it to inform the board during the debate of any need to hear witness to support its line of argument. The petitioner's claim to have been denied its right to be heard was not established. The board was **not obliged to address in detail each and every argument** presented by the party. The Enlarged Board had already found in R 21/09 that, on the pretext of an alleged infringement of the right to be heard, it was actually being asked to review the substance of the decision. This clearly fell outside the ambit of review proceedings, it being solely a matter for the board to decide whether to take a piece of evidence into account and, if so, to determine its probative value. See also T 361/00, in which the board found that the opposition division had not (as alleged) committed any substantial procedural violation in disregarding an offer of evidence, since the minutes showed that no request that a witness be heard had been made.

The appellant in T 1028/11 alleged that the opposition division had infringed its right to be heard, and so committed a procedural violation, by refusing to hear the witness it had offered. According to the board, a witness's function was simply to corroborate the alleged facts on which they were heard and not to fill in gaps in those facts. Parties therefore had to specify what legally relevant facts the witness's testimony was intended to prove. Based on the evidence available, the opposition division had taken the view that the public prior use was not prejudicial to patentability. The board found that there would have been little point in hearing the witness at that stage. Cited in T 444/09. See also above chapter III.G.2.4.1.a) "Role of witnesses and wording of request".

3.3.4 Improper reasons for rejection of evidence offered

If a **disputed point** is **highly relevant** to the validity of the contested patent, it is, as a rule, not in keeping with good procedural practice for an opposition division not to take up an opportunity to hear a witness or party in evidence and instead to require written statements and make do with their typically lower probative value. The board in T 329/02 could not identify any extraordinary circumstances that might have justified an exception to this rule in the case in point.

In T 1363/14 the board pointed out that no EPC provision required that the facts adduced in support of alleged prior use actually be proven within the opposition period in order to substantiate the allegation; rather the requirement was for opponents to submit all the relevant facts and, should the other party **dispute** them, as a precaution offer suitable evidence. It was in the nature of offering witnesses to state that they would corroborate the facts (already) alleged. It was not permitted to speculate about what a witness would be able to remember and what not, thereby pre-empting the evidence's evaluation. The principle of unfettered consideration of the evidence did not apply until after it had been taken and could not be used to justify not taking evidence offered. Thus the opposition division's refusal to summon the witnesses had arbitrarily ruled out the possibility that they

would be able to corroborate the opponent's allegations. Pre-empting the evidence's evaluation in this manner had been unjustified. See also T.2238/15.

Similarly, in T.906/98 the board found that the opposition division had applied the wrong criteria when exercising its discretion (not to order the hearing of witnesses on a prior use) by speculating instead of investigating before refusing to take the evidence on offer, which related to the aspect of the prior use in dispute, namely what had been used and so made available to the public.

In T.314/18 (alleged public prior use – several sales) a witness had been offered but not heard. Contrary to the view of the opposition division, the appellant (opponent) had offered the witness solely to corroborate the facts already submitted in support of the alleged prior use. No provision of the EPC required an alleged prior use to be conclusively proven within the opposition period. In referring to the EPO Guidelines and arguing that the lack of adequate substantiation of the prior use in the notice of opposition could not be overcome by hearing the witness, the opposition division had mixed up the submission of facts and the proof required to establish them. By refusing to hear the proposed witness, the opposition division had in fact proceeded to assess evidence that had not yet been established, although it had appeared to be prima facie relevant for the decision to be taken. This was procedurally incorrect and the opposition division had thus infringed the appellant's right to be heard under Art. 117(1) and 113(1) EPC.

According to the case law of the boards of appeal and as mentioned in decision T.142/97, a deciding body must ascertain the relevance of evidence submitted to it before deciding to admit or reject it. When relevant features of the prior art trailers as asserted by the opponents were questionable and remained contested, a request by the opponents **for the evidence to be secured**, e.g. by hearing witnesses proposed by the opponents or by inspection of the trailer in accordance with Art. 117(1)(f) EPC, could not be rejected without justification. In case T.1647/15 the opposition division had rejected the evidence on the basis of mere suppositions, making no real attempt to definitely assess it or its relevance. This refusal to consider evidence filed **in due time** infringed a party's fundamental rights to a free choice of evidence and to be heard (Art. 117(1) and 113(1) EPC).

In T.267/06 the witness hearing offered as further evidence should not have been disregarded for the purposes of assessing the claimed public prior use as per D12 (drawing without a date). This amounted to a fundamental procedural violation (Art. 113(1) EPC). This decision was cited in T.1231/11, but the board there held that the two cases differed. See also T.660/16.

3.3.5 Witnesses at oral proceedings despite not confirming attendance in advance

In T.2003/08 of 31 October 2012 witnesses were summoned in accordance with R. 118 EPC and they were invited to confirm their attendance. Neither witness replied at all. But both witnesses were present. The appellant (patentee) requested the board to refrain from hearing them. The failure to react to the invitation in the summonses did not have any influence on the board's view that the witness evidence was necessary.

3.3.6 No violation where evidence irrelevant to the outcome of the case

In T.361/00 the board ruled that there was no point hearing the author of statutory declarations as a witness at oral proceedings because, in view of the other aspects on file that had been discussed, it would not change its decision.

3.3.7 No violation of right to be heard where evidence of limited probative value

In T.103/15, the appellant (opponent) invoked the right to be heard to challenge the opposition division's disregarding the test report (D9) it had submitted as evidence. It argued that the reliability of D9 and the fact that its author had not been disclosed had not been an issue during the written phase of the opposition proceedings, not being raised by the opposition division until the oral proceedings, and alleged that it had thus been taken by surprise when the opposition division announced that D9 would not be taken into account. On evaluation of the evidence, the board held that, with respect to the probative value of test evidence, it was important not only to indicate the conditions under which those tests had been conducted, but also to specify the names of the testers and their employers so that the relationship between the testers and the party could be established if necessary. The appellant had been given the opportunity to provide the relevant information about the authorship of the test report D9 during the oral proceedings, but had refused to do so. In view of the test report's limited probative value, the board did not take it into account when reviewing the opposition division's decision (see also chapter III.G.4.2.2 a) below).

For another case where the board accepted the opposition division's decision to disregard evidence, see T.1680/15.

3.3.8 Violation of the right to defend a case

In T.1872/08 the board decided that in not admitting the additional comparative tests offered by the patentee, the opposition division had not taken into account that the patentee deemed further comparative data to be absolutely necessary in order to overcome its objections as to inventive step. The opposition division had thus **deprived the patentee of the possibility to defend its case effectively**. See also T.2294/12, in which the examining division had disregarded comparative tests.

3.3.9 Direct and indirect evidence of the state of the art

When evaluating evidence, it is necessary to distinguish between a document which is alleged to be part of the state of the art within the meaning of Art. 54(2) EPC, and a document which is not itself part of the state of the art, but which is submitted as evidence of the state of the art or in substantiation of any other allegation of fact relevant to issues of novelty and inventive step (T.1110/03, OJ 2005, 302). In the first situation, a document is **direct evidence** of the state of the art; its status as state of the art cannot normally be challenged except on authenticity. In the second situation, a document is also **evidence** albeit **indirect**; it provides a basis for an inference about, e.g. the state of the art, common general knowledge in the art, issues of interpretation or technical prejudice etc. – an